

HOUSE No. 5473

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, June 3, 2026.

The committee on House Ways and Means, to whom was referred the Bill relative to authorizing the conveyance of certain parcels of land in the city of Fall River (House, No. 4973), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5473).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to authorizing the conveyance of certain parcels of land in the city of Fall River.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 20 of chapter 6C of the General Laws, section
2 7E of chapter 81 of the General Laws or any other general or special law to the contrary, the
3 secretary of the Massachusetts Department of Transportation or their designee, shall convey to
4 the Fall River Redevelopment Authority certain parcels of land, owned by the Massachusetts
5 Department of Transportation, containing 21.55 acres, more or less, of vacant land, previously
6 taken and used for highway purposes.

7 (b)(1) The parcels conveyed pursuant to subsection (a) shall be further described as
8 bounded by: (i) Davol street northbound on the east; and (ii) Davol street southbound on the
9 west. The northern limit of the parcels shall be Brightman street and the southern limit shall be
10 Turner street in the city of Fall River.

11 (2) Included in the parcels pursuant to subsection (a) shall be the parcels between: (i)
12 Turner street and Hathway street; (ii) Hathway street and President avenue; (iii) President avenue

and Brightman street; and (iv) the northern portion of Lindsey street that is bordered by Brightman street in the North and Davol street north in the city of Fall River

(3) Said parcels shall be fully described in a survey to be prepared and approved by the Massachusetts Department of Transportation and filed by the secretary of the Massachusetts Department of Transportation or their designee, with the house and senate committees on ways and means not later than 180 days after the effective date of this act.

(c) The conveyance pursuant to subsection (a) shall be subject to adequate compensation pursuant to section 3 and agreed to by the secretary of the Massachusetts Department of Transportation or their designee and the executive director of the Fall River Redevelopment Authority.

SECTION 2. (a) Notwithstanding chapter 121B of the General Laws or any other general or special law to the contrary, the Fall River Redevelopment Authority may purchase from the Massachusetts Department of Transportation certain parcels of land described in section 1 subject to terms acceptable to the parties.

(b)(1) The Fall River Redevelopment Authority, after purchase pursuant to subsection (a), may develop, sell or lease the parcels of land for residential, retail, commercial, restaurant and other economic development purposes, under the approved Fall River Waterfront Urban Renewal Plan, approved by the executive office of housing and livable communities in August 2019.

(2) Any parcels transferred pursuant to this section shall not need to adopt or adhere to an urban renewal plan, as defined in section 1 of chapter 121B of the General Laws and the Fall River Redevelopment Authority shall enjoy the statutory authority it would possess for land and

structures and other property within an urban renewal project as defined by said section 1 of said chapter 121B.

SECTION 3. The consideration for the conveyance, pursuant to section 1, shall be nominal consideration of \$1.00, to be paid by the Fall River Redevelopment Authority, for the initial transfer of the parcels of land from the Massachusetts Department of Transportation to the Fall River Redevelopment Authority. The parcels shall be conveyed in their present condition, as is, where is and with all faults, through the Massachusetts Department of Transportation's standard form release deed.

SECTION 4. The net proceeds of all land sales or lease pursuant to section 2 shall be deposited in the Massachusetts Transportation Trust Fund and not less than \$10,000,000 shall be utilized by the Fall River Redevelopment Authority to offset transportation related purposes for the construction of an expandable 200 space off-street public and private use parking garage and expenditures for the maintenance of sidewalks, shared use paths and other projects eligible for funding as described in the Intermodal Surface Transportation Efficiency Act of 1991, P.L. 102-240.

SECTION 5. An independent appraisal of the future fair market value for any sale or lease of the parcels to be conveyed pursuant to section 2 shall be prepared in accordance with the usual and customary professional appraisal practices by a qualified appraiser commissioned by the Fall River Redevelopment Authority and submitted to the secretary of the Massachusetts Department of Transportation. Within 30 days of the receipt of the appraisal, the secretary of the Massachusetts Department of Transportation shall review and approve the appraisal, and the review shall include an examination of the methodology utilized for the appraisal. The secretary

shall submit the appraisal to the inspector general for review and comment. The inspector general shall review and approve the appraisal and the review shall include an examination of the methodology utilized for the appraisal. The inspector general shall prepare a report and file the report with the secretary and the commissioner of capital asset management and maintenance. Not less than 15 days prior to the execution of documents effecting the transfers described in section 2, the secretary shall submit copies of the appraisal and the inspector general's report to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight.

SECTION 6. Notwithstanding any general or special law to the contrary, the Fall River Redevelopment Authority shall be responsible for all upfront costs and expenses associated with the conveyance authorized in section 1 including, but not limited to, all costs associated with any engineering, surveys, appraisals and deed preparation as such costs may be determined by the secretary of the Massachusetts Department of Transportation netted out of the proceeds from the sale pursuant to section 2. Net proceeds shall be deposited in the Massachusetts Transportation Trust Fund.

SECTION 7. In the event that the parcels of land comprising 21.55 acres, more or less, described in section 1 and conveyed pursuant to section 2 cease to be used by the Fall River Redevelopment Authority, the developers selected and any other subsequent owners for the purposes described in section 2 at any time then, upon notice by the secretary of the Massachusetts Department of Transportation or their designee, said undeveloped parcels of land shall revert to the Massachusetts Department of Transportation. Should said parcels of land comprising the 21.55 acres, more or less, revert to the Massachusetts Department of Transportation, any further disposition thereof shall be subject to section 20 of chapter 6C of the

80 General Laws and section 7E of chapter 81 of the General Laws and to the prior approval of the
81 general court.

82 SECTION 8. This act shall take effect upon its passage.